

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
FAR PART 6**

Identification Number (purchase request/solicitation number): DAC D-25-TC-0166

1. Identification of the agency and contracting activity.

- A. Agency:** Drug Enforcement Administration (DEA)
- B. Contracting activity:** Office of Acquisition and Relocation Management (FA)
- C. Requiring activity:** Information Systems Division (TC) - IT Operations (TICM)

2. Nature and/or description of the action being approved. *(e.g., new contract award or modification expanding the scope of an existing contract)*

This request is to acquire TACLANE equipment for the classified network to replace old TACLANE equipment.

3. A description of the supplies or services required to meet the agency's needs, including the estimated value. *(inclusive of all options)*

This procurement will replace legacy TACLANE equipment that are out on the field in order to keep DEA mission secure and to stay within security standards.

Total estimated value: \$489,585.00	Period of performance or final delivery date: 08/01/2025
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4. An identification of the statutory authority permitting other than full and open competition.

Check the appropriate box. Only one box may be checked.

- ☒ [41 U.S.C. 3304\(a\)\(1\)](#) and [FAR 6.302-1](#)
"Only one responsible source and no other supplies or services will satisfy agency requirements"
- ☐ [41 U.S.C. 3304\(a\)\(2\)](#) and [FAR 6.302-2](#)
"Unusual and compelling urgency"
- ☐ [41 U.S.C. 3304\(a\)\(3\)](#) and [FAR 6.302-3](#)
"Industrial mobilization; engineering, developmental, or research capability; or expert services"
- ☐ [41 U.S.C. 3304\(a\)\(4\)](#) and [FAR 6.302-4](#)
"International agreement"
- ☐ [41 U.S.C. 3304\(a\)\(5\)](#) and [FAR 6.302-5](#)
"Authorized or required by statute"
- ☐ [41 U.S.C. 3304\(a\)\(6\)](#) and [FAR 6.302-6](#)
"National security"
- ☐ [41 U.S.C. 3304\(a\)\(7\)](#) and [FAR 6.302-7](#)
"Public interest"

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

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DEA currently utilizes the (KG-175F) TACLANEs to securely communicate the Intel Support Systems classified networks. It is requirement that DEA utilizes NSA approved encryption devices that allow for remote administration/management, configuring and encryption key mgmt. In addition, the encryption devices much integrate with DEA's key cryptography mgmt. system as well as the 100's of existing TACLANE devices currently in use. The KG-175F TACLANE is the only DEA and NSA approved encryption devices authorized on the Merlin and Speedway classified networks.

- 6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by [Subpart 5.2](#) and, if not, which exception under [5.202](#) applies.**

The KG-175F is a Controlled Cryptographic Item (CCI) sold only by General Dynamics Mission Systems, therefore, no offers could be solicited from other sources.

- 7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.**

The CO will utilize FAR part 13.106-3(a)(2)(ii) to determine that the price is fair and reasonable prior to award.

- 8. A description of the market research conducted (see [Part 10](#)) and the results or a statement of the reason market research was not conducted.**

The KG-175F is a Controlled Cryptographic Item (CCI) sold only by General Dynamics Mission Systems, therefore, no market research was conducted. Since this product is a CCI please note the specific COMSEC requirements. The DEA COMEC COR's info has been provided.

- 9. Any other facts supporting the use of other than full and open competition, such as:**

- i. Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.**

N/A

- ii. When 41 U.S.C. 3304(a)(1) is cited for follow-on acquisitions as described in [6.302-1\(a\)\(2\)\(ii\)](#), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.**

N/A

- iii. When [6.302-2](#) is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.**

N/A

- 10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.**

N/A

- 11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required. N/A**

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CERTIFICATIONS

☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.

☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Official

**GARY
NEWCOMB**

Signature & Title

Digitally signed by GARY
NEWCOMB
Date: 2025.04.10 08:47:12
-04'00'

Date _____

"I hereby certify that the description of the requirement meets the Government's minimum needs and that the technical data and supporting information, which form the basis for this Justification for Other than Full and Open Competition, are accurate and complete to the best of my knowledge and belief".

☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.

☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Office
Technical Point of Contact

**GARY
NEWCOMB**

Signature & Title

Digitally signed by
GARY NEWCOMB
Date: 2025.04.10
08:47:38 -04'00'

Date _____

"I hereby certify that this Justification for Other than Full and Open Competition is accurate and complete to the best of my knowledge and belief."

Contract Specialist

Signature

Date _____

Contracting Officer

RANDY BELL

Signature

Digitally signed by RANDY BELL
Date: 2025.05.09 10:16:56 -04'00'

Date _____

"I have reviewed the subject contract action and find it legally sufficient for award."

CC Legal Counsel
(if over \$750,000)

Signature

Date _____

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REVIEWS AND APPROVALS

Competition Advocate (if over \$750,000)	_____ Signature	Date _____
Chief, FAC (if over \$750,000)	_____ Signature	Date _____
Bureau Procurement Chief (if over \$750,000 per JAR 2806.304)	_____ Signature	Date _____
Head of the Contracting Activity (if over \$15M)	_____ Signature	Date _____
Senior Procurement Executive (if over \$75M)	_____ Signature	Date _____